

Opinion of the Court

by each”). And for decades more, we applied our precedent without qualm or quibble. See, *e.g.*, *Screws v. United States*, 325 U.S. 91 (1945); *Jerome v. United States*, 318 U.S. 101 (1943); *Puerto Rico v. Shell Co. (P. R.), Ltd.*, 302 U.S. 253 (1937); *Westfall v. United States*, 274 U.S. 256 (1927); *Hebert v. Louisiana*, 272 U.S. 312 (1926). When petitioners in 1959 asked us twice to reverse course, we twice refused, finding “[n]o consideration or persuasive reason not presented to the Court in the prior cases” for disturbing our “firmly established” doctrine. *Abbate v. United States*, 359 U.S. 187, 195; see also *Bartkus v. Illinois*, 359 U.S. 121. And then we went on enforcing it, adding another six decades of cases to the doctrine’s history. See, *e.g.*, *Puerto Rico v. Sánchez Valle*, 579 U.S. 59 (2016); *Heath v. Alabama*, 474 U.S. 82 (1985); *United States v. Wheeler*, 435 U.S. 313 (1978); *Rinaldi v. United States*, 434 U.S. 22 (1977) (*per curiam*).

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We briefly address two objections to this analysis.

First, the dissents contend that our dual-sovereignty rule errs in treating the Federal and State *Governments* as two separate sovereigns when in fact sovereignty belongs to the people. See *post*, at 728 (opinion of GINSBURG, J.); *post*, at 743 (opinion of GORSUCH, J.). This argument is based on a non sequitur. Yes, our Constitution rests on the principle that the people are sovereign, but that does not mean that they have conferred all the attributes of sovereignty on a single government. Instead, the people, by adopting the Constitution, “‘split the atom of sovereignty.’” *Alden v. Maine*, 527 U.S. 706, 751 (1999) (brackets omitted). As we explained last Term:

“When the original States declared their independence, they claimed the powers inherent in sovereignty The Constitution limited but did not abolish the sovereign powers of the States, which retained ‘a residuary